

Court No. - 36

Case :- WRIT - C No. - 19027 of 2011

Petitioner :- Sultan Khan

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Arvind Srivastava,Rajesh Tripathi

Respondent Counsel :- C.S.C.

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Rajesh Chandra,J.

On prayer made by Shri Raj Shekhar Yadav, holding brief for Shri Rajesh Tripathi, learned counsel for the respondent nos. 4 and 5, the case is directed to be put up as fresh on 11th April, 2011, so as to enable Shri Rajesh Tripathi to obtain instructions in the matter.

Order Date :- 1.4.2011

M/A.

Court No. - 36

Case :- WRIT - C No. - 19027 of 2011

Petitioner :- Sultan Khan

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Arvind Srivastava,Rajesh Tripathi

Respondent Counsel :- C.S.C.

Hon'ble Satya Poot Mehrotra,J.

Hon'ble S.C. Agarwal,J.

On prayer made by Shri Subhash Gosain, holding brief for Shri Rajesh Tripathi, learned counsel for the respondent nos. 4 and 5, the case is directed to be put-up as fresh on 16.4.2011 so as to enable Shri Rajesh Tripathi to obtain instructions, as mentioned in the Order dated 1st April, 2011.

Order Date :- 11.4.2011

Ajeet

Court No. - 36

Case :- WRIT - C No. - 19027 of 2011

Petitioner :- Sultan Khan

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Arvind Srivastava,Rajesh Tripathi

Respondent Counsel :- C.S.C.

Hon'ble Satya Poot Mehrotra,J.

Hon'ble Rajesh Chandra,J.

Case called out. None is present for the petitioner.

Put up as fresh on 9.5.2011. In the meantime, Shri Rajesh Tripathi will obtain instructions, as mentioned in the order dated 1.4.2011 read with the order dated 11.4.2011.

Order Date :- 18.4.2011

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Case :- WRIT - C No. - 19027 of 2011

Petitioner :- Sultan Khan

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Arvind Srivastava, Rajesh Tripathi

Respondent Counsel :- C.S.C.

Hon'ble Satya Poot Mehrotra, J.

Hon'ble Rajesh Chandra, J.

Case called out.

None is present for the petitioner.

Put-up as fresh on 27th May, 2011.

Order Date :- 13.5.2011

Ajeet

Court No. - 35

Case :- WRIT - C No. - 19027 of 2011

Petitioner :- Sultan Khan

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Arvind Srivastava, Rajesh Tripathi

Respondent Counsel :- C.S.C.

Hon'ble Sunil Ambwani, J.

Hon'ble Kashi Nath Pandey, J.

Learned counsel appearing for the respondents submits that permanent disconnection could not be made as alleged in the year 2005 as no officer of a rank less than SDO is authorised to direct permanent disconnection in December, 2010. At the time of inspection the lines were not found connected. The meter was found installed. It was removed and that bills were prepared, sent on the readings in the meter, with minimum charges.

Let the counter affidavit be filed within two weeks. The rejoinder will be filed within two weeks, thereafter.

List on 7th July, 2011.

Prima facie we find substance in the contention of learned counsel for the petitioner that where permanent disconnection dated 8.4.2005 is not made by the competent authority, it has to be treated as temporary disconnection, and in such case the outstanding bill on the date of temporary disconnection and six months minimum charges in accordance with Clause 4.37 of the Electricity Supply Code, 2005 can be charged. Clause 4.37 provided as follows:-

"4.37. (a) The Licensee shall, after a connection is temporarily disconnected, bill a consumer on minimum charges, and also issue a notice, as per format given in Annexure 4.9, to the consumer, to remove the cause of disconnection failing which, the supply shall be disconnected permanently after six month. Such connections shall be treated as dormant connections (awaiting final account), and the billing shall be stopped after carrying out inspections and duly informing the consumer, and final account of the consumer shall be prepared.

(b) Wherever licensee discovers that connection has been re-connected unauthorisedly after temporary disconnection, licensee may initiate action as per provisions of Section 138 of the Act."

As an interim measure, we provide that in case the petitioner pays the entire amount due in the bill upto the period 8.4.2005, and the minimum charges for six months after 8.4.2005, with interest,

within one month, the revised provisional bill shall be prepared and given to the petitioner within 15 days. Until then the recovery under fresh demand under challenge shall remain stayed. In case of default, the interim order shall stand vacated.

Order Date :- 27.5.2011

SP/

Court No. - 36

Case :- WRIT - C No. - 19027 of 2011

Petitioner :- Sultan Khan

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Arvind Srivastava, Rajesh Tripathi

Respondent Counsel :- C.S.C.

Hon'ble Yatindra Singh, J.

Hon'ble Kashi Nath Pandey, J.

The case is called out. No one is present on behalf of the petitioner.

Writ petition is dismissed in default.

Order Date :- 28.7.2011

Puspendra